

High-Level Committee on Demographic Change



For Prelims: Article 355 , Sixth Schedule , Siliguri Corridor , Total Fertility Rate (TFR) ,

For Mains: Illegal immigration and internal security, India's demographic transition and inter-state labour mobility

Source: TH

Why in News?

The Union Ministry of Home Affairs (MHA) has officially constituted a "**High-Level Committee to study demographic changes arising from illegal immigration and other abnormal reasons.**"

- The panel, tasked with delivering actionable policy solutions aims to address what the government characterises as a critical challenge to national sovereignty, border security, and local socio-cultural structures.

What is the Composition and Timeline of the High-Level Committee?

- **Chairmanship:** The panel is headed by Justice Prakash Prabhakar Navlekar, a retired Supreme Court Judge and former Lokayukta of Madhya Pradesh, and also comprises the Census Commissioner, among others.
- **Tenure and Deadlines:** The committee has been directed to submit its final report **within one year** (by May 2027), with an available provision for a six-month extension if required.
- **Main Objectives and Terms of Reference (ToR):**
 - **Scientific Assessment:** Conduct a comprehensive, data-driven assessment of demographic changes across India caused by **illegal immigration** , abnormal settlement patterns, and orchestrated migration.
 - **Granular Community Analysis:** Analyze structural population fluctuations at the level of specific religious and social communities, particularly in regions where data deviates significantly from broader nationwide trends.
 - **Inter-State Coordination:** Propose a comprehensive policy framework designed to enhance operational coordination between Central and State governments on managing demographic

imbalances.

- **Permanent Deportation Framework:** Recommend a streamlined, institutional, and permanent mechanism for the legally sound, fair, and time-bound identification, detention, and deportation of undocumented immigrants.
- **Border Management and Monitoring:** Formulate robust institutional mechanisms to strengthen border management, optimize identity verification systems, and deploy tools for the continuous monitoring of abnormal migration trends.

What is the Need to Study Demographic Changes?

- **Safeguarding Internal Security and Sovereignty:** Unchecked infiltration across porous eastern borders represents a silent demographic invasion.
 - In the landmark ***Sarbananda Sonowal vs. Union of India (2005)*** judgment, the Supreme Court equated the massive influx of illegal immigrants into Assam to "external aggression" under **Article 355** of the Constitution.
 - States sharing porous international borders with Bangladesh—such as West Bengal, Assam, Meghalaya, Tripura, and Jharkhand (via transit)—have historically witnessed sustained, undocumented migration.
 - The demographic anxiety is not a recent phenomenon; it formed the bedrock of the **Assam Movement (1979-1985)**, ultimately leading to the signing of the Assam Accord.
- **Catalyst for Ethnic Conflict and Internal Displacement:** The most immediate need to study these shifts is their **direct correlation with violent internal friction**.
 - The ongoing ethnic violence in Manipur is deeply intertwined with demographic anxieties. The influx of **Chin-Kuki refugees** fleeing the **post-2021 military coup in Myanmar** altered the demographic realities of the hill districts.
 - This intensified the Meitei community's insecurities regarding land rights and political representation in the Imphal Valley, ultimately serving as a primary catalyst for the state's destabilization.
 - Illegal migration corridors are frequently co-opted by transnational syndicates for human trafficking, arms smuggling, and the potential infiltration of radicalized elements.
 - An empirical study is required to map these structural anomalies and secure vulnerable strategic corridors, such as the **Siliguri Corridor**.
- **Protecting Indigenous and Tribal Identities:** In resource-rich tribal belts, such as the **Santhal Pargana region in Jharkhand or the Sixth Schedule areas in the Northeast**, unnatural decadal population growth threatens to minoritize indigenous communities in their ancestral homelands.
 - Despite protective frameworks like Santhal Pargana Tenancy Act of 1876, illegal immigrants often exploit systemic loopholes (e.g., **benami transactions or marriages of convenience**) to usurp tribal lands.
 - A comprehensive demographic audit is crucial to measure the exact extent of land alienation.
- **Addressing Socio-Economic and Resource Asymmetries:** According to the **Sample Registration System (SRS) data**, India's national **Total Fertility Rate (TFR) has declined to 2.0** (below the replacement level of 2.1).
 - However, historical data indicate that certain border districts have exhibited decadal growth rates ranging from 29% to over 40% statistical anomalies that cannot be explained by natural birth rates alone.
 - This unnatural population surge places severe strain on public infrastructure, **healthcare, and local agrarian economies**, acting as a direct catalyst for **ethnic friction and socio-economic conflict**.

- **Preserving the Integrity of the Electoral Process:** The illegal procurement of identity documents (such as Aadhaar and Voter IDs) by undocumented migrants artificially skews the **electoral demography**.
 - Measures like the **Special Intensive Revision (SIR)** of Electoral Rolls become crucial to detect irregular entries, prevent disenfranchisement of native populations, and uphold the sanctity of democratic processes at the state and local levels.
- **Establishing a Framework for Institutional Response:** With the last Census conducted in 2011, India currently lacks granular, contemporary data on localized demographic deviations.
 - A specialized study will provide vital baseline data ahead of the scheduled 2027 Census exercise.
- **Streamlining Deportation Mechanisms:** Accurately quantifying the scale of the issue is a prerequisite for creating a legal, fair, and time-bound institutional mechanism for the identification, detention, and deportation of illegal immigrants under the **Foreigners Act, 1946 (now Immigration and Foreigners Act, 2025)**.

Constitutional and Legal Framework

- **Article 355:** Imposes an affirmative duty on the Union to protect every State against external aggression and internal disturbance.
- **The Foreigners Act, 1946:** Places the burden of proof heavily on the individual to prove they are an Indian citizen (rather than on the State) and empowers the government to identify, detain, and deport foreigners.
- **The Citizenship Act, 1955:** Provides the statutory framework for the acquisition and termination of Indian citizenship.
 - **Section 6A** was specifically inserted to operationalize the citizenship parameters defined in the Assam Accord.
- **Fifth and Sixth Schedules:** Designed to protect the autonomy, culture, and land rights of tribal populations.
 - In the context of Jharkhand, laws like the **Santhal Pargana Tenancy Act, 1876** strictly prohibit the transfer of tribal land to non-tribals to prevent demographic and economic dispossession.

Supreme Court Judgments

- **Sarbananda Sonowal vs. Union of India (2005):** The Court explicitly noted that the continuous, unchecked influx of Bangladeshi nationals into Assam amounted to "**external aggression**" and internal disturbance.
 - It invoked **Article 355**, ruling that the Union government had failed in its constitutional duty to protect the state, and mandated the application of the stricter Foreigners Act, 1946.
- **Assam Sanmilita Mahasangha & Ors vs. Union of India (2014):** The Supreme Court directed the Union and State governments to undertake a time-bound, monitored update of the **National Register of Citizens (NRC)** in Assam to identify undocumented immigrants.

Critical Commission and Committee Reports

- **Lt. Gen. S.K. Sinha Report (1998):** It noted that the silent demographic alteration of the border districts was severing the Northeast from the rest of India and posing a grave threat to national security.
- **Upamanyu Hazarika Commission (2015):** The commission starkly warned that if the ongoing demographic trends continued unchecked, the indigenous population of Assam would become a minority in their own state by the year 2047.
- **Madhukar Gupta Committee (2016):** It conceptualized the **Comprehensive Integrated Border Management System (CIBMS)**, recommending the shift from physical patrolling to a technology-heavy grid using ground sensors, thermal imagers, and aerostats to secure riverine and difficult terrains where demographic infiltration is highest.

What is India's Demographic Scenario?

- **TFR Below Replacement Level:** According to the **Sample Registration System Statistical Report**

2023,

- India's TFR has declined to 1.9 at the national level, with rural India touching the replacement rate of 2.1 for the first time, while urban TFR stands much lower at 1.5.
- According to the **NFHS-5 (2019-21)**, India's TFR has dropped to 2.0 children per woman, which is below the replacement level of 2.1.
- This means a generation is not producing enough children to replace itself, eventually leading to population stabilization and decline (expected around 2060-2070).
- **North-South Divide:**
 - **Southern India (Kerala, Tamil Nadu):** These states have TFRs comparable to developed nations (1.6 - 1.7), largely due to early and effective population control measures, and are now facing an ageing population similar to China.
 - **Northern India (Bihar, UP):** These states still have high TFRs (above 2.4), providing the bulk of India's young workforce.
 - Migration from North to South will become critical for filling labor gaps.
- **Closing Window of Demographic Dividend:** India has a "youth bulge" with a median age of 28.4 years (compared to China's around 40).
 - However, this window is short. The working-age population is projected to peak by 2041, while the elderly (60+) will rise sharply from 149 million (10.5%) today to 347 million (20.8%) by 2050.
 - Without rapid skill development and job creation, India's demographic dividend risks turning into a demographic disaster.

Way Forward

- **Expedite Granular Data Collection:** Prioritize the upcoming 2027 Census and localized, scientific demographic audits to bridge the critical data deficit, ensuring that policy interventions are based on empirical evidence rather than estimates.
- **Technological Fortification of Borders:** Accelerate the full-scale deployment of the CIBMS across vulnerable riverine and porous eastern stretches to shift from physical patrolling to an airtight, sensor-based monitoring grid.
- **Institutionalize Deportation and Electoral Integrity:** Operationalize a transparent, time-bound legal mechanism under the Immigration and Foreigners Act, 2025, while concurrently auditing state electoral rolls to neutralize the weaponization of fraudulent identity documents.
- **Harmonize Internal Labor Mobility:** As India's demographic dividend narrows and the North-South fertility divide widens, establish formal frameworks for safe, internal inter-state migration to fill labor shortages in aging southern states without triggering local socio-ethnic friction.

Conclusion

The constitution of this High-Level Committee marks a strategic pivot from reactive border policing to a proactive, data-driven defense against silent demographic invasions. Implementing its findings through robust technology and strict statutory enforcement will be paramount to securing India's electoral integrity, indigenous land rights, and internal sovereignty.

Drishti Mains Question:

How can India balance national security concerns with constitutional and humanitarian safeguards while addressing illegal immigration?

Frequently Asked Questions (FAQs)

1. What is the purpose of the High-Level Committee set up by the MHA?

It will study demographic changes caused by illegal immigration and abnormal migration, and suggest policy solutions on border security, deportation, and inter-state coordination.

2. Why is Article 355 important in this issue?

Article 355 places a duty on the Union to protect states from external aggression and internal disturbance, and the article links illegal immigration to this constitutional duty.

3. Which laws are most relevant for dealing with undocumented immigrants?

The Foreigners Act, 1946, the Citizenship Act, 1955, and now the Immigration and Foreigners Act, 2025 are central to identification, detention, deportation, and citizenship-related questions.

4. Why are tribal areas especially vulnerable to demographic change?

The Fifth and Sixth Schedules, along with laws like the SPT and CNT Acts in Jharkhand, are meant to protect tribal land and identity, but illegal migration can still create land alienation and demographic pressure.

5. What is CIBMS and why is it important?

The Comprehensive Integrated Border Management System uses sensors, thermal imagers, and aerostats to strengthen surveillance in riverine and porous border areas where infiltration risk is high.

[Watch Video on YouTube:

► <https://www.youtube.com/embed/dzF--tRASLs>]

UPSC Civil Services Examination, Previous Year Questions (PYQs)

Q. To obtain full benefits of demographic dividend, what should India do? (2013)

- (a) Promoting skill development
- (b) Introducing more social security schemes
- (c) Reducing infant mortality rate
- (d) Privatization of higher education

Ans: (a)

Q. Consider the following specific stages of demographic transition associated with economic development: (2012)

1. Low birth rate with low death rate
2. High birth rate with high death rate
3. High birth rate with low death rate

Select the correct order of the above stages using the codes given below:

- (a) 1, 2, 3
- (b) 2, 1, 3
- (c) 2, 3, 1
- (d) 3, 2, 1

Ans: (c)

Q1. “Empowering women is the key to control the population growth.” Discuss. **(2019)**

Q2. Critically examine the effect of globalization on the aged population in India. **(2013)**

Q3. Discuss the main objectives of Population Education and point out the measures to achieve them in India in detail. **(2021)**

Q4. What is the concept of a ‘demographic winter’? Is the world moving towards such a situation? Elaborate. **(2024)**

Article 142



Source: TH

Why in News?

The Supreme Court of India exercised its extraordinary powers under **Article 142** to elevate the **Right to safe travel on National Highways as a fundamental right**, declaring it an integral part of the **Right to Life under Article 21 of the Constitution** .

- Taking suo motu cognisance of two tragic road accidents in November 2025 that claimed 34 lives, the apex court issued wide-ranging directives in the **landmark case *In Re: Phalodi Accident vs. National Highways Authority of India and Others (2025)***, ruling that maintaining safe, motorable roads is a constitutional obligation of the state.

What is the Significance of Article 142?

- **Constitutional Safety Valve: Article 142(1)** empowers the Supreme Court to pass any decree or order necessary for doing "**complete justice**" in any cause or matter pending before it, acting as a mechanism to fill legislative gaps where existing laws fail to provide a specific remedy.
- **Inherent and Residuary Power:** This power is not conferred by ordinary statutes but is **inherent to the apex court's role as the custodian of the Constitution** , enabling it to transcend strict procedural technicalities to prevent a manifest travesty of justice.
- **Supremacy Over Ordinary Laws:** In ***Delhi Judicial Service Association vs. State of Gujarat (1991)*** , the Supreme Court held that this power is of an entirely different quality, and **statutory restrictions contained in ordinary laws cannot limit the constitutional powers of the Court** under Article 142.
- **Precedence of Natural Justice:** As affirmed in ***Canara Bank vs. Debasis Das (2003)*** , the constitutional intent is to deliver **substantive justice (the removal of injustices)** .
 - When formal legal justice falls short, the principles of natural justice and fairness must prevail.
- **Article 142 and High Courts:** In ***Anil Kumar Jain vs. Maya Jain (2009)*** , the Supreme Court clarified that the powers of High Courts under **Article 226** are **not co-extensive or at par with the extraordinary residuary powers** vested exclusively in the apex court under Article 142.
 - While the concept of justice must always be "complete," **High Courts must operate within a more circumscribed legal framework** and cannot routinely bypass statutory law.
 - While the Supreme Court possesses the primary tool under Article 142 to adapt the law to rapidly changing socio-economic realities, High Courts contribute to complete justice strictly within their defined constitutional limits.

Supreme Court on Highway Safety Management

- **Disproportionate Fatality Rates:** While **National Highways comprise only 2% of India's entire road network**, they account for an **alarming 30% of all road fatalities** .
- **Policy vs. Constitutional Obligation:** The Court shifted the paradigm by declaring that well-maintained roads are no longer just an administrative policy goal but a **justiciable constitutional mandate** under Article 21.
- **Catalyzing State Action:** The judiciary's intervention forces the executive to accelerate its targeted strategy to reduce road accidents by **50% by 2030** through the **"4Es" framework: Education, Engineering (of roads and vehicles), Enforcement, and Emergency Medical Services** .

Concerns Regarding the Article 142

- **Threat to Separation of Powers:** Critics argue that the frequent invocation of Article 142 leads to **judicial encroachment** upon the exclusive domains of the Executive and the Legislature, bypassing established statutory procedures.
- **Risk of Judicial Overreach:** By substituting legislative silence with wide-ranging judicial directives (as seen in landmark environmental and safety guidelines), the Court faces allegations of transforming into a **de facto legislature**.
- **The Activism Counter-Argument:** Proponents argue that **judicial activism** involves a progressive interpretation of the Constitution to address fast-evolving social realities (e.g., **live-in relationships**, changing value systems). When established laws prove inadequate, the Court must step in proactively as the **guardian of fundamental rights**.
- **Extraordinary Caution Mandated:** Acknowledging the potential for misuse, the apex court itself ruled in *Hitesh Bhatnagar vs. Deepa Bhatnagar (2011)* that **extraordinary care and caution** must be observed before invoking this residuary jurisdiction.

Frequently Asked Questions (FAQs)

1. What is Article 142 of the Constitution?

Article 142 empowers the Supreme Court to pass any order necessary for doing “complete justice” in matters before it, even beyond ordinary statutory limitations.

2. Why did the Supreme Court link safe travel with Article 21?

The Court held that safe, motorable roads are integral to the Right to Life under Article 21, making road safety a constitutional obligation of the State.

3. What is the 4Es framework for road safety?

The 4Es framework includes Education, Engineering, Enforcement, and Emergency Medical Services to reduce road accidents and fatalities systematically.

4. Why is Article 142 criticized?

Critics argue that excessive use of Article 142 may lead to judicial overreach and encroachment into the domains of the Legislature and Executive, affecting separation of powers.

5. Can High Courts exercise powers similar to Article 142?

No. High Courts exercise powers under Article 226, but these are not as wide or residuary as the Supreme Court’s extraordinary powers under Article 142.

[Watch Video on YouTube:

▶ <https://www.youtube.com/embed/SGTVvpbQaWQ>

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UPSC Civil Services Exam, Previous Year Questions (PYQ)

Prelims

Q. With reference to the Constitution of India, prohibitions or limitations or provisions contained in ordinary laws cannot act as prohibitions or limitations on the constitutional powers under Article 142. It could mean which one of the following? (2019)

- (a) The decisions taken by the Election Commission of India while discharging its duties cannot be challenged in any court of law
- (b) The Supreme Court of India is not constrained in the exercise of its powers by laws made by the Parliament.
- (c) In the event of grave financial crisis in the country, the President of India can declare Financial Emergency without the counsel from the Cabinet.
- (d) State Legislatures cannot make laws on certain matters without the concurrence of Union Legislature.

Ans: (b)

Supreme Court Review of Wetland Conservation Rules, 2017



Source: TH

The **Supreme Court of India** has agreed to examine the constitutional validity of the **Wetlands (Conservation and Management) Rules, 2017** , following a petition alleging that the law arbitrarily excludes a vast majority of human-made and artificial wetlands from environmental protection.

- **Definitional Inconsistency with Ramsar Convention:** The petition argues that **Rule 2(g) of the 2017 Rules violates India's international obligations under the Ramsar Convention (1971)** , which explicitly mandates the protection of both **natural and artificial wetlands, whether permanent or temporary** , without distinction.
- **Threat to Existing Ramsar Sites:** By carving out strict exclusions for waterbodies constructed for drinking water, irrigation, aquaculture, salt production, and recreation, **39 out of India's 94 designated Ramsar wetlands risk losing their legally protected status** .
- **Violation of the Principle of Non-Regression:** The 2017 framework allegedly **weakens existing legal protections** established by the predecessor 2010 Rules, which successfully included human-made tanks, reservoirs, and complex irrigation structures.
 - Unlike the 2010 Wetlands Framework, which retained the **Central Wetlands Regulatory Authority (CWRA)** and an explicit list of prohibited activities, the 2017 Rules decentralized wetland identification powers to **State Wetland Authorities (SWAs)**.
 - Critics argue that this enabled states to exploit definitional loopholes and declassify ecologically sensitive wetlands for infrastructure and real estate projects.
- **Contempt of Judicial Precedents:** The petition highlights that the current rules directly subvert the Supreme Court's mandate in the landmark **M.K. Balakrishnan v. Union of India (2017)** case, which explicitly ordered the statutory protection of all **wetlands mapped in the National Wetland Atlas** .
 - The 2017 framework shifts away from identifying wetlands by their **functional characteristics such as hydrology, soil saturation, biodiversity support, and groundwater recharge** focusing instead on their origin (natural vs. artificial), which contradicts **ISRO's National Wetland Inventory and Assessment** mapping standards.

Read more: [Ramsar Sites](#)



Source: TH

The **Sample Registration System (SRS) Statistical Report 2024** highlights a profound shift in India's public health landscape, revealing that **Non-Communicable Diseases (NCDs) were the cause of 60% of all deaths in India** during the 2022-2024 reporting period.

- **Rising Mortality Curve of NCDs:** The share of NCDs in total mortality has **escalated by 7.3% points**, rising from 52.8% in 2015-2017 to **60% in 2022-2024**, signaling that chronic illnesses have firmly displaced infectious diseases as India's primary health threat.
 - Among all NCDs, **cardiovascular diseases alone accounted for 32.1% of all deaths** (up from 27.1% in 2015-2017) and spike to **37.3% within the 30-69 productive age group**, causing severe premature mortality among adults in their 30s and 40s who form the core of the nation's workforce.
- **Socio-Demographic and Rural-Urban Penetration:** While NCD mortality remains higher in urban areas (64.8%) compared to rural zones (58.8%), and among men (62.3%) versus women (56.9%).
 - The data shows an accelerating **upward trajectory of NCDs becoming the dominant killer among rural populations and women**.
- **Demographic Dividend at Risk:** With **adults aged 30 to 44 accounting for 19.5% of total deaths** amidst a declining national **Total Fertility Rate (TFR)**, premature mortality from lifestyle diseases poses a direct threat to India's shrinking window of demographic dividend.
 - For India's youth in the **15-29 age bracket**, **suicide remains the leading cause of death**, rising from 16.3% to **19% of all deaths** in this cohort, reflecting immense underlying mental health vulnerabilities linked to socio-economic stressors.
- **Stark Regional Asymmetries:** A clear health divide persists between **Empowered Action Group (EAG) States and Assam, where NCDs cause 53.9% of deaths**, compared to non-EAG states where NCD mortality stands significantly higher at **63.5%**, mapping directly to varying levels of urbanization and demographic aging.

Non-Communicable Diseases (NCDs)

- NCDs are **chronic, non-transmissible diseases of long duration** caused by a combination of genetic, physiological, environmental, and lifestyle-related factors.
 - Major NCDs include cardiovascular diseases, cancers, chronic respiratory diseases, and diabetes, which are often referred to as lifestyle diseases when linked to unhealthy habits.
- To address this growing burden, the **National Programme for Prevention and Control of Non-Communicable Diseases (NP-NCD)** was launched in 2010 across 100 districts in 21 states during the 11 th Five Year Plan.
 - The programme was later expanded under the 12th Five Year Plan and subsumed under the **National Health Mission (NHM) in 2013-14** to strengthen universal access to affordable and quality healthcare services.

Read more: [The Burden of Non-communicable Diseases \(NCDs\) in India](#)

PM-AJAY Portal and AJAY Mobile App



Source: PIB

Recently, the **Ministry of Social Justice and Empowerment** launched the **PM-AJAY portal** and **AJAY mobile app** to fully digitise grassroots workflows under the **Pradhan Mantri Anusuchit Jaati Abhyuday Yojana (PM-AJAY)**.

- **PM-AJAY:** It is a **centrally Sponsored Scheme** implemented by the **Ministry of Social Justice and Empowerment** to improve the socio-economic conditions of SC communities.
 - Its objectives include **poverty reduction through employment generation**, skill development and improving socio-economic indicators in SC-dominated villages.
- **Dashboard:** The PM-AJAY dashboard records progress in socio-economic development in more than **47,000 SC-majority villages** and over **4 million beneficiaries** across all components. It will provide national, state and district-level dashboards for monitoring scheme progress.
- **Three Components:** The portal will act as a **central digital database** and **coordination platform** for **all three PM-AJAY components:** Adarsh Gram, Grant-in-Aid for skilling and employment, and hostels in educational institutions.
 - **Under the Adarsh Gram component,** paper-based village planning will be replaced by digital planning through Village Development Plans, monitored across 50 socio-economic indicators and 10 development domains.
 - **For the Grant-in-Aid component,** the portal will function as a central management information system (MIS) to track financial outlays, livelihood funding, beneficiary registration, skill training, and employment-related progress.
 - **For the Hostel component,** the portal and app will support proposal submission, progress tracking, inspections, and uploading of geo-tagged and time-stamped photographs to verify construction and repair milestones.
- **PM-AJAY Mobile App:** It has been developed as a unified digital platform to extend the services and functions of the existing **PMAGY and PM-AJAY portals** to mobile users through a user-friendly interface.
 - It enables mobile-based access to scheme information and **beneficiary-centric services**, while improving field-level monitoring, real-time reporting, transparency, and digital governance.

Read More: [Pradhan Mantri Anusuchit Jaati Abhyuday Yojana](#)